

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



July 29, 2020

The Honorable Robert Perry
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Edwin Ernesto Rivera
CDCR No: T93188
Case No: BA216430
Date of Sentence: April 23, 2003

Dear Honorable Robert Perry:

The purpose of this letter is to provide the court with the authority to resentence inmate Edwin Rivera, T93188 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Rivera has received five Rules Violation Report's since being received to CDCR on May 16, 2003; however, he has remained disciplinary free since April of 2014. Inmate Rivera is currently assigned as a Peer Mentor and his supervisor notes he does a good job as a mentor/clerk for the Re-Entry Program, is diligent in his performance of duties, and always maintains a pleasant and positive attitude. Rivera's supervisor also notes he assists and supports his fellow peers and the Phoenix House contract staff and whenever he is needed, he steps up and helps the Re-Entry Program. Inmate Rivera also participates in the Life's Too Short program and College (voluntary). He has received Letters of Support

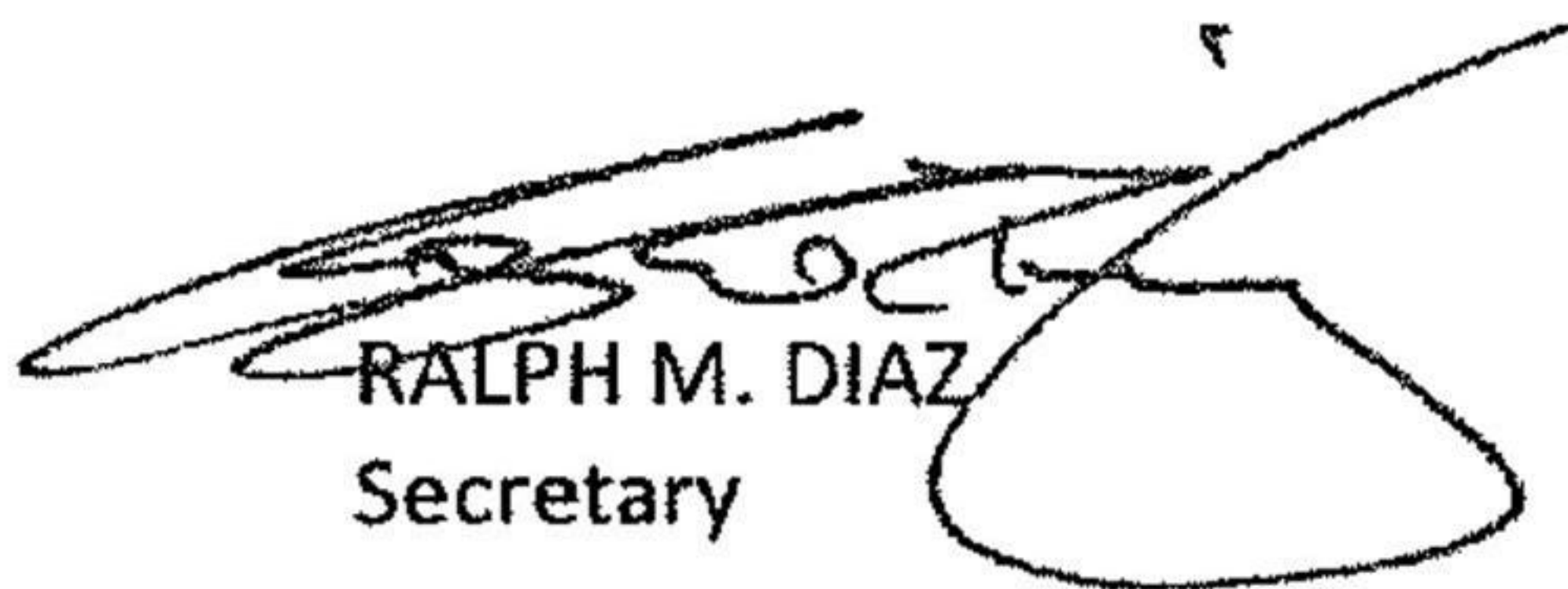
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and various Laudatory Chrono's from these Group Sponsors acknowledging his commitment and dedication to these Self-Awareness/Improvement Groups. Inmate Rivera met the standards of the General Educational Development and received his High School Equivalency Certificate at California State Prison, Sacramento. Staff stated inmate Rivera is utilized as a Youth Offender Program (YOP), Mentor, and has been a positive influence for the YOP. Additionally, staff relayed that inmate Rivera is a positive role model to the YOP inmates, has never received any negative feedback from any staff or inmates, and approaches staff when there are concerns within the program.

Having reviewed the enclosed documentation it appears that inmate Rivera's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office